

**Superior Court of the State of California  
County of Orange**

**DEPT C20 TENTATIVE RULINGS**

**Judge Theodore Howard**

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

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**Date: August 13, 2026**

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| 1. | State Farm General Insurance Company v. Gyroor LLC<br>23-1322521 | <p>The unopposed motion by Tianyu Ju and Glacier Law Group to be relieved as counsel for defendant Shenzhen Lanxun Trade Co., Ltd. is <b>GRANTED</b>.</p> <p>Mr. Ju to submit a revised proposed order which shows no upcoming hearings in this matter. The Order will become effective upon filing of a proof of service reflecting service of the resulting Order on the client.</p> |

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|    |                                                                         | <i>Attorney Tianyu Ju is ordered to give notice of this ruling.</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 2. | U.S. Technical Consultants, Inc. v. Cutter Aviation, Inc.<br>25-1530391 | <i>(Continued)</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 3. | Gonzalez v. FCA US, LLC<br>23-1337669                                   | <p>Before the Court is an unopposed motion for sanctions filed by defendants FCA US, LLC and Orange Coast Chrysler Dodge Jeep Ram Fiat against counsel for Plaintiffs, Strategic Legal Practice, APC, in the amount of \$7,124. For the reasons set forth below the motion is <b>GRANTED</b>.</p> <p>"A trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." (<i>Code of Civ. Proc. § 128.5, subd. (a).</i>) Sanctions may also be imposed for violation of local court rules, including ordering counsel or a party to pay to the moving party reasonable attorney fees incurred in making and/or appearing at the hearing on the motion. (<i>Code of Civ. Proc. § 575.2; OCSC Local Rule 318.</i>) Lastly, monetary sanctions may be imposed against a party or counsel, or both, for failure to comply with California Rules of Court pretrial and trial rules. (<i>Cal. Rules of Court, rule 2.30(b).</i>)</p> <p>Here, Defendants have shown (as do court records) that Plaintiffs' counsel has repeatedly failed to appear ready for trial or failed to appear for trial altogether in violation of <i>California Rules of Court, rule 3.1332(a)</i> and causing unnecessary delay. Plaintiffs' counsel has also failed to timely prepare, exchange, and submit required trial documents under Orange County Superior Court <i>Local Rule 317</i>, and failed to communicate with defense counsel in preparing trial documents or otherwise taking steps to comply with the court's trial-setting orders. (Declaration of Michelle R. Prescott ¶¶ 4-30, 32.) The Court therefore awards sanctions in favor of Defendants and against Strategic Legal Practice APC in the amount of \$7,124, which the Court finds reasonable and reasonably incurred as a result of the misconduct.</p> <p><i>Counsel for Defendants shall give notice of this ruling.</i></p> |
| 4. | Potter v. Gustafson<br>26-1554580                                       | <i>(Continued)</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 5. | Anabi Oil Corporation v. TTV Corp<br>26-1554180                         | <p>Before the Court is a motion by Defendants TTV Corp., Thach Vo and Truc Tran (collectively, TTV) in which they seek leave to file a cross-complaint. The motion is <b>GRANTED</b>.</p> <p>The court finds that TTV's cross-complaint is transactionally related to plaintiff's complaint, (See <i>Time for Living, Inc. v. Guy Hatfield Homes/All American Develop. Co.</i> (1991) 230 Cal.App.3d 30, 38-39) and that the interests of justice will be served by granting leave for TTV to file their cross-complaint. (<i>CCP §428.50(c)</i>). Ordinarily, the court does not consider the validity of the proposed amended pleading</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |

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|    |                                               | <p>in deciding whether to grant leave to amend. (<i>Kittredge Sports Co. v. Superior Court (Marker, U.S.A.)</i> (1989) 213 Cal. App. 3d 1045, 1048)</p> <p>Accordingly, the motion is <b>GRANTED</b>.</p> <p>TTV shall file and serve the verified cross-complaint attached as Exhibit A to the declaration of Thomas J. Weiss within 14 days.</p> <p><i>TTV shall give notice.</i></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 6. | Hajjar v. Hyundai Motor America<br>25-1522162 | <p>The motion to compel arbitration of the claims of plaintiff Diana Hajjar (Plaintiff) filed by defendant Hyundai Motor America (Defendant) is <b>DENIED</b>.</p> <p>On a motion to compel arbitration, the moving party bears the burden of proving the existence of an applicable agreement and the party opposing arbitration bears the burden of proving any defense. (See <i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972 (California Arbitration Act); see also <i>Installit, Inc. v. Carpenters 46 Northern California Counties Conference Board</i> (N.D. Cal. 2016) 214 F.Supp.3d 855, 859 (Federal Arbitration Act).)</p> <p>Defendant seeks to compel arbitration of Plaintiff's claims based on an arbitration provision contained in Defendant's Owner's Handbook &amp; Warranty Information (Warranty), which Defendant states accompanied the Vehicle. In the alternative, Defendant seeks to compel arbitration based on the arbitration provision contained in Defendant's Connected Services Agreement (CSA) between the parties.</p> <p>As to the Warranty, Defendant has offered no evidence that Plaintiff received any notice of, or agreed to, the Warranty's arbitration provision prior to her purchasing the Vehicle. Defendant does not claim that the Warranty or the arbitration provision therein was signed by Plaintiff or was even seen by her. Defendant has provided nothing to suggest Plaintiff consented to the agreement in the Warranty. Simply because the Warranty accompanied the Vehicle does not mean Plaintiff was aware of the arbitration provision or read it. Under California law, an offeree "is not bound by inconspicuous contractual provisions of which he [or she] was unaware, contained in a document whose contractual nature is not obvious." (<i>Herzog v. Superior Court</i> (2024) 101 Cal.App.5th 1280, 1293-1294.) "This 'principle of knowing consent applies with particular force to provisions for arbitration . . .'" (Id. at p. 1294.) There is no evidence Plaintiff had notice of the existence of an agreement to arbitrate by virtue of the Warranty. Thus, mutual assent is lacking. (See <i>Esparza v. Sand &amp; Sea, Inc.</i> (2016) 2 Cal.App.5th 781, 790 [holding arbitration agreement unenforceable where offeree lacked a reasonable opportunity to read or learn of the arbitration provision at the time of signing].)</p> <p>In addition, equitable estoppel cannot apply here, as a warranty is not a traditional contract. It is effectively a unilateral promise to the consumer. (See <i>Gavaldon v. DaimlerChrysler Corp.</i> (2004) 32 Cal.4th 1246, 1258; <i>Daugherty v. American Honda Motor Co., Inc.</i> (2006) 144</p> |

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|    |                                 | <p>Cal.App.4th 824, 830.) In the arbitration context, “[w]hen a plaintiff brings a claim which relies on contract terms against a defendant, the plaintiff may be equitably estopped from repudiating the arbitration clause contained in that agreement.” (<i>JSM Tuscany, LLC v. Superior Court</i> (2011) 193 Cal.App.4th 1222, 1239, emphasis added.) But “[a]n essential element of any contract is the consent of the parties, or mutual assent.” (<i>Donovan v. RRL Corp.</i> (2001) 26 Cal.4th 261, 270.) That is not shown here. Equitable estoppel thus cannot apply in this context.</p> <p>Furthermore, Plaintiff’s claims are not clearly dependent on the Warranty. The causes of action allege violations of the Song-Beverly Act, which imposes certain statutory obligations on manufacturers who make express warranties. (<i>Ford Motor Warranty Cases</i> (2025) 17 Cal.5th 1122, 1133.) Plaintiff’s claims are based on Defendant’s violations of these statutory obligations, rather than a term of the Warranty itself. As such, Defendant failed to show equitable estoppel applies.</p> <p>As to the CSA, the contract specifically states that it applies to “our provision of Connected Services to you,” and so does not purport to apply to the Vehicle’s warranty. Further, the scope of an arbitration clause turns on whether the claims are “rooted” in the contractual relationship between the parties. (<i>Ahern v. Asset Management Consultants, Inc.</i> (2022) 74 Cal.App.5th 675, 692-693.) The subject claims must “have their roots in the relationship between the parties which was created by the contract” before they can be deemed to fall within the scope of the arbitration provision. (<i>Rice v. Downs</i> (2016) 248 Cal.App.4th 175, 188.) The “Connected Services” provided under the CSA are not at issue in this case. Plaintiff’s claims thus are not “rooted” in the relationship created by the CSA.</p> <p>Based on the foregoing, Defendant failed to establish the existence of a written agreement to arbitrate between the parties based upon either the Warranty or the CSA.</p> <p>Accordingly, the motion is <b>DENIED</b>.</p> <p>Defendant’s request for judicial notice of the Complaint in this action is <b>GRANTED</b>. (<i>Evid. Code</i>, § 452(d).)</p> <p><i>Counsel for Plaintiff is ordered to give notice.</i></p> |
| 7. | Delatorre v. Smith<br>2-1498067 | (Continued)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 8. | Zhou v. Liu<br>26-1551228       | <p>Before the Court at present is the “Motion to Correct the Proposed Judgment Recalculate the Monetary Award and Request Other Relief Authorized By Law,” filed on 7/20/26 by Defendants Xiaobo Liu and Yu Zheng (“Defendants”). The Motion is <b>DENIED</b>.</p> <p>The Motion presents various arguments, but Defendants have failed to present supporting authority for any request for relief. Assertions unsupported by legal authority are presumed to lack merit. (<i>Atchley v.</i></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |

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|     |                                                                        | <p><i>City of Fresno</i> (1984) 151 Cal.App.3d 635, 647.) Nor have Defendants presented sufficient evidence to suggest that any requested relief is warranted here in any event. The Motion is therefore <b>DENIED</b>.</p> <p><i>The clerk is to give notice of this ruling.</i></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 9.  | Wong v. SBS Trust Deed Network<br>23-1343409                           | (Moot)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 10. | Victory Live, Inc. V. Kai Sports and Entertainment Corp.<br>25-1512515 | <p>Before the Court is motion for an order setting a default prove-up hearing filed by plaintiff Victory Live, Inc. (Plaintiff). For the reasons set forth below, the motion is <b>GRANTED</b>.</p> <p>Plaintiff's request for judicial notice is <b>GRANTED</b>. (<i>Evid. Code</i> § 452, <i>subd. (d)</i>.)</p> <p>Entry of default judgment by the court clerk is authorized only if the action is one "arising upon [a] contract or judgment"; seeks recovery of "money or damages only" in a fixed or determinable amount; and the defendant was not served by publication. (<i>Code of Civ. Proc.</i> § 585, <i>subd. (a)</i>.) In all other cases, a default judgment can be granted only by the judge upon an evidentiary showing. (<i>Code of Civ. Proc.</i> § 585, <i>subd. (b)</i>.) A court judgment is also required where plaintiff seeks "reasonable" attorney fees, <i>i.e.</i>, where the plaintiff wants more than the scheduled fee pursuant to local rule. In such cases, the court clerk has no power to determine the amount and a court judgment is required. (<i>Landwehr v. Gillette</i> (1917) 174 Cal. 654, 657-658.)</p> <p>Here, the defaulted defendants were personally served, and Plaintiff's complaint is an action arising out of an express contract seeking the recovery of money damages in the fixed amount of \$293,691.63. However, Plaintiff seeks reasonable attorney fees in an amount more than allowed by the attorney fee schedule under <i>Local Rule 366</i>. (Compl. at p. 12:5; ROA 45; RJN, Exs. 2 at ¶ 14, Ex. 3 at ¶ 2.) Thus, a court judgment upon evidentiary showing is required. The motion is therefore <b>GRANTED</b>.</p> <p>The Court sets the default prove-up hearing for a date and time to be determined at the hearing in Department C20. Plaintiff shall file and serve a notice of the hearing and re-serve the prior default packet and/or any other required documents pursuant to <i>California Rules of Court</i>, rule 3.1300.</p> <p><i>Counsel for Plaintiff shall give notice of this ruling.</i></p> |
| 11. | Pruthi v. Spinnaker Insurance Company<br>26-1550156                    | <p>The demurrer of defendant Hippo Analytics, Inc. (Hippo) directed to the complaint of plaintiffs Akhil Pruthi and Indu Pruthi (collectively, Plaintiffs) is <b>OVERRULED</b>.</p> <p>Hippo shall file an answer to the complaint within 20 days.</p> <p>A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311,</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |

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|     |                                  | <p>318; <i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4th 968, 994.)</p> <p>The question of plaintiff's ability to prove the allegations in the complaint, or possible difficulties in making such proof, is of no concern in ruling on a demurrer. (<i>Committee on Children's Television, Inc. v. General Foods Corp.</i> (1983) 35 Cal.3d 197, 213-214.) The sole issue raised by a general demurrer is whether the facts pleaded state a valid cause of action—not whether they are true. (<i>Del E. Webb Corp. v. Structural Materials Co.</i> (1981) 123 Cal.App.3d 593, 604.)</p> <p>Hippo contends the third cause of action for Violation of the Elder Abuse and Dependent Adult Civil Protection Act fails because Hippo, as an insurance adjuster, cannot be liable for violation of the elder abuse statute based on the holding in <i>Strawn v. Morris Polich &amp; Purdy, LLP</i> (2019) 30 Cal.App.5th 1087.</p> <p>It is not clearly shown from the allegations in the complaint that <i>Strawn</i> applies to Plaintiffs' claims against Hippo. Initially, as Plaintiffs point out, the complaint does not plead that Plaintiffs' claim was adjusted by Hippo's employees "licensed as independent insurance adjusters." No such allegation is contained in the pleading. The complaint pleads that Hippo and defendant Spinnaker Insurance Company (Spinnaker) "are affiliates and subsidiaries owned by their parent company, Hippo Holdings, Inc.," and that Defendants were "conducting the business of issuing and selling" the homeowner's insurance at issue. (Complaint, ¶¶ 5, 7.) The complaint also alleges that Defendants, which includes Hippo, took Plaintiffs' policy premiums with no intent of fully paying the benefits promised under the policy and wrongfully retained Plaintiffs' policy benefits by denying payment or paying less than was due. (Complaint, ¶ 45.) The allegations that Spinnaker and Hippo are affiliates and subsidiaries acting under a common parent company could suggest that Hippo had – as Plaintiffs put it – a financial stake in premiums collected and claims not paid and was thus acting for its own individual advantage. Under these circumstances, <i>Strawn</i> may not apply. (See <i>Strawn, supra</i>, 30 Cal.App.5th at 1101-1102.)</p> <p>Plaintiffs are correct that the issue of who specifically adjusted Plaintiffs' claim, in what capacity, and under which license is something that cannot be resolved on demurrer.</p> <p>Based on the foregoing, the demurrer is <b>OVERRULED</b>.</p> <p><i>Counsel for Plaintiffs shall give notice.</i></p> |
| 12. | Nicholson v. Bland<br>25-1461757 | <p>Before the Court is an unopposed demurrer by Plaintiff Paul Nick Nicholson to the answer by Defendant Daniel Bland to the First Amended Complaint (FAC). For the reasons set forth herein, the Demurrer is <b>SUSTAINED</b> as to the 2nd – 6th and 12th – 16th affirmative defenses and <b>OVERRULED</b> as to the remaining defenses. Defendant is granted 14 days leave to file an amended answer.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

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|     |                                                             | <p><i>Code of Civil Procedure §431.30(b)</i> states: "The answer to a complaint shall contain: (1) The general or specific denial of the material allegations of the complaint controverted by the defendant. (2) A statement of any new matter constituting a defense." Section <i>§430.20</i> states: "A party against whom an answer has been filed may object, by demurrer as provided in Section 430.30, to the answer upon any one or more of the following grounds: (a) The answer does not state facts sufficient to constitute a defense."</p> <p>A defendant raising new matters in an answer must allege ultimate facts sufficient to prove the defense with the same level of detail that a plaintiff is required to allege ultimate facts to support a cause of action in a complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 384.) "Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action. [Citation.]" "There are, however, certain important differences between these two kinds of demurrer. An important difference is that in the case of a demurrer to the answer, as distinguished from a demurrer to the complaint, the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer." (<i>South Shore Land Co. v. Petersen</i> (1964) 226 Cal.App.2d 725, 733.)</p> <p>The Court finds that the 2nd – 6th and 12th – 16th affirmative defenses raise new matters and fail to allege sufficient facts in support thereof. Accordingly, the demurrer is <b>SUSTAINED</b> as to these causes of action.</p> <p>The Court finds that the 1st, 7th-11th, and 17th-18th causes of action do not raise new matters. The 1st cause of action does not require further facts be pled. (<i>Code of Civil Procedure §430.80.</i>) The 18th affirmative defense is merely a statement and not an affirmative defense. The remaining defenses are responses to allegations raised by the complaint and are denials of plaintiff's allegations regarding formation of the contract. Accordingly, the demurrer is <b>OVERRULED</b> as to these causes of action.</p> <p><i>Plaintiff shall give notice.</i></p> |
| 13. | Hood v. Hyundai Motor America<br>25-1513152                 | (Withdrawn)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 14. | Kumar v. Children's Hospital of Orange County<br>23-1361438 | <p>Before the Court at present is the Motion for Summary Judgment filed on 3/12/26 by Defendant Kishan Patel, M.D. ("Patel"). The Motion is directed to the First Amended Complaint ("FAC") filed on 11/16/23 by "Arjun Kumar, a minor, by and through his Guardian Ad Litem Pavan Kumar" ("Plaintiff"). Patel was named therein as Doe 1 (ROA 59).</p> <p>The FAC asserts a single claim for medical negligence. On such a claim, when a defendant moves for summary judgment and supports the</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

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|     |                                                      | <p>motion with an expert declaration that the defendant's conduct fell within the community standard of care, or did not cause or contribute to the injury, the defendant is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence. (<i>Hanson v. Grode</i> (1999) 76 Cal.App.4th 601, 607; <i>Munro v. Regents of University of California</i> (1989) 215 Cal.App.3d 977, 984-985; <i>Fernandez v. Alexander</i> (2019) 31 Cal.App.5th 770, 781-782.)</p> <p>Here, Patel has presented expert opinion provided by Dr. Gregory Hammer. (ROA 168.) Dr. Hammer therein opines that Patel acted within the standard of care in providing an epidural to Plaintiff's mother, and during his involvement in the resuscitation efforts provided to Plaintiff after delivery, and that to a reasonable medical probability, no negligent act or omission on the part of Dr. Patel led to Plaintiff's injuries.</p> <p>(Hammer Decl. ¶¶ 25-35.) The burden thus shifts to Plaintiff to show a deviation from the standard of care and causation as to Dr. Patel. Plaintiff has not met that burden here, as Plaintiff has offered no expert opinion to contradict the Hammer Decl. as presented with the Motion.</p> <p>Dr. Patel has also presented evidence to show that the Good Samaritan statutes at <i>B&amp;P Code</i> §§2395 and 2396 squarely apply to him here, with regard to his efforts to resuscitate Plaintiff after Plaintiff's delivery. (UF 2, 3, 6-16.) Plaintiff has failed to dispute that this is so.</p> <p>Defendants' Motion for Summary Judgment, as to Dr. Patel, is therefore <b>GRANTED</b>.</p> <p><i>Counsel for Defendant Patel is to give notice of this ruling.</i></p> |
| 15. | Garcia v. Westcoast Tree Service, Inc.<br>22-1240507 | <p>Before the Court is defendant Jorge Juarez's motion for summary judgment on the complaint of Nemesio Garcia. For the reasons set forth below, the motion is <b>DENIED</b>.</p> <p>Defendants' request for judicial notice is <b>GRANTED</b>. (<i>Evid. Code</i> § 452, <i>subd. (d)</i>.)</p> <p>To establish a complete defense on a summary judgment motion, defendant must present admissible evidence of each essential element of the defense upon which it bears the burden of proof at trial. (<i>Anderson v. Metalclad Insulation Corp.</i> (1999) 72 Cal.App.4th 284, 289.) Thus, where a defense has several elements, lack of substantial evidence on any element bars relief, even if the plaintiff failed to introduce a scintilla of evidence challenging that element." (<i>Huynh v. Ingersoll-Rand</i> (1993) 16 Cal.App.4th 825, 831.)</p> <p>Defendant argues the workers compensation exclusivity rule bars Plaintiff's complaint. Ordinarily, when an employee sustains a worksite injury, the exclusive remedy against his or her employer is provided by the workers' compensation law, and the employer is immune from a suit for damages. (<i>Vebr v. Culp</i> (2015) 241 Cal.App.4th 1044, 1051.) An employee's injury is subject to the workers' compensation</p>                                                                                                                                                                                                                                                                                                                                                                                                                                               |



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|     |                                                               | <p>exclusivity rule if specified "conditions of compensation" exist at the time of injury, including that the employee is "performing service growing out of and incidental to his or her employment and is acting within the course of his or her employment." (<i>Lab. Code § 3600, subd. (a)(1)-(9).</i>) The workers' compensation exclusivity rule extends to co-employees, with certain exceptions not applicable here. (<i>Lab. Code § 3601, subd. (a).</i>)</p> <p>"[F] an injury to occur in the course of employment the employee must be engaged in the work he has been hired to perform or some expectable personal act incidental thereto and the injury must occur within the period of his employment and at a place where he may reasonably be for the purpose." (<i>State Comp. Ins. Fund v. Workers' Comp. Appeals Bd.</i> (1976) 59 Cal.App.3d 647, 652; <i>Lab. Code § 3351</i> [an "employee" for purposes of workers' compensation means "every person in the service of an employer under any appointment or contract of hire or apprenticeship, express or implied, oral or written, whether lawfully or unlawfully employed"]; <i>Laeng v. Workmen's Comp. Appeals Bd.</i> (1972) 6 Cal.3d 771, 782-783 [pre-hire applicant was an "employee" because services were incurred for the benefit of the employer and performed according to its assignment and under its direction and control].)</p> <p>Defendant failed to meet its initial burden establishing Plaintiff was an "employee" of defendant Westcoast Tree Services, Inc. (Westcoast) performing services at the behest of Westcoast at the time of the injury. There are no such facts in Defendant's separate statement. (<i>United Comm. Church v. Garcin</i> (1991) 231 Cal.App.3d 327, 337, superseded statute on other grounds ["This is the Golden Rule of Summary Adjudication: If it is not set forth in the separate statement, it does not exist"]; <i>Parsons v. Estenson Logistics, LLC</i> (2022) 86 Cal.App.5th 1260, 1265, fn. 5.)</p> <p>Moreover, the only evidence produced by Defendant on Plaintiff's purported employment status is Plaintiff's responses to interrogatories and Plaintiff's deposition testimony. (Declaration of Lauren G. Kane, Exs. C, D.) While Plaintiff testified that he was with Juarez on a "work-related trip," he also testified he hadn't yet started employment with Westcoast at the time of the accident. (<i>Id.</i> at Ex. D at pp. 14-15.) Nor did Defendant produce any evidence of an employment agreement between Westcoast and Plaintiff, or that Plaintiff performed any services on assignment, direction or control of Westcoast. Defendant having failed to meet his initial burden, the burden never shifted to Plaintiff. The motion is therefore <b>DENIED</b>.</p> <p><i>Counsel for Plaintiff shall give notice of this ruling.</i></p> |
| 16. | Uptown Newport Jamboree, LLC v. Newport Fab, LLC<br>18-973247 | <p>Before the court is a motion by Uptown Newport Jamboree, LLC (Uptown) for an order allowing it leave to file a second Motion for Summary Judgment as to the First Amended Cross Complaint (FAXC) filed by Newport Fab, LLC dba Jazz Semiconductor (Jazz). The motion is <b>DENIED</b>, for the reasons set forth herein.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |

*Code of Civil Procedure §437c(a)* provides, in part: “(4) A party shall not bring more than one motion for summary judgment against an adverse party to the action or proceeding. This limitation does not apply to motions for summary adjudication. (5) Notwithstanding any other provision of this section, on motion or application of any party and a showing of good cause, the court may grant leave for the moving party to bring an additional motion for summary judgment. The moving party shall serve the notice and supporting papers for any such additional motion in accordance with paragraph (2) of subdivision (a).”

On 4/9/21, Uptown filed a “Motion for Summary Judgment or in the Alternative Summary Adjudication” on 4/9/21. (ROA 344) On 2/24/22, the court denied both motions and issued a Minute Order stating: “The motion for summary judgment is **DENIED**, as is the alternative motion for summary adjudication.” (ROA 455) Accordingly, the issue in this motion is whether Uptown has submitted evidence establishing good cause to warrant leave to file a second motion for summary judgment as set forth in *Section 437c(a)(5)*.

In 2024 Assembly Bill 2049 enacted several changes to *§437c*. Before AB 2049, *Section 437c(f)(2)* allowed for a second motion for summary judgment where there were sufficient “newly discovered facts or circumstances or a change of law.” When the Legislature enacted the new *Section 437c(a)(5)*, it established a new requirement that good cause be shown. However, the Legislature did not include as an example of good cause such things as new facts or new law. The Legislature further expressly left the decision to allow a second motion for summary judgment to the discretion of the Court. Uptown points out that there is no case interpreting the current section *437c(a)(5)*. Further, cases interpreting *Section 437c(f)(2)* are not helpful as the Legislature did not indicate an intent to codify earlier cases and instead intentionally omitted such. “It is well established that it is not the proper function of the courts to supply legislative omissions from a statute in an attempt to make it conform to a presumed intention of the Legislature not expressed in the statutory language.” (*Cemetery Bd. v. Telophase Soc’y of Am.* (1978) 87 Cal.App.3d 847, 858)

Turning to the issue of good cause, Uptown asserts that it entered into a New Lease with Jazz and that such extinguishes the basis for the fraud claims in the FAXC. Uptown cites to excerpts of the New Lease as well as the Sabovich declaration. However, neither have been filed with the Court. “In law and motion practice, factual evidence is supplied to the court by way of declarations.” (*Calcor Space Facility, Inc. v. Superior Ct.* (1997) 53 Cal.App.4th 216, 224) Accordingly, there is no evidentiary support for the motion and the motion is **DENIED**.

Further, while the actual New Lease is not attached, the parties have quoted excerpts therefrom. For example, the New Lease apparently

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|     |  | <p>refers to the Existing Litigation and the parties agreed in section 17.1 that "Landlord and Tenant expressly retain all rights and remedies under the 2002 Lease, and each party hereto acknowledges that nothing set forth in this Lease shall constitute a waiver or release by the other party hereto under the 2002 Lease ... and Tenant shall expressly retain all rights to pursue monetary damages against Landlord, which Landlord denies any basis therefor exists." These facts are substantially different from the facts in <i>Oakland Raiders v. Oakland-Alameda County Coliseum, Inc.</i> (2006) 144 Cal.App.4th 1175 and <i>Channell v. Anthony</i> (1976) 58 Cal.App.3d 290.</p> <p>Based on the information provided, the Court does not find the execution of the New Lease to be a condition supporting a finding of good cause to warrant a second motion for summary judgment.</p> <p><i>Jazz is ordered to give notice of this ruling</i></p> |
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